



Maritime &
Coastguard
Agency

Guidance

ILO Work in fishing convention 2007 minimum age and protection for young persons on fishing vessels

Published 4 February 2022

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This publication is available at <https://www.gov.uk/government/publications/msn-1882-f-ilo-work-in-fishing-convention-minimum-age/ilo-work-in-fishing-convention-2007-minimum-age-and-protection-for-young-persons-on-fishing-vessels>

Summary

This notice provides information about the minimum age for fishermen and the protection of young persons (under 18 years) working on board UK fishing vessels.

- The minimum age for working on a UK seagoing fishing vessel is 16 years of age, but provision is made in certain circumstances for those aged 15 to do light work in school holidays.
- Additional safety measures are required to protect young persons (those under the age of 18 years), particularly for work which may jeopardise their health and safety.
- The employer must carry out a risk assessment with regard to the particular risks to young persons. Guidance is given on specific risks to young persons which may arise from their work on board fishing vessels.
- Where young persons are required to work at night, the fishing vessel owner must ensure that the vessel's risk assessment records the steps they have taken to minimise the risks of nightwork and to protect the young person.
- "night" means a period of at least nine consecutive hours including the hours between midnight and 5 a.m. (local time)
- An employer must provide health surveillance for those under the age of 18 years who work at night.

- The minimum hours of rest are specified for fishermen under 18 years of age.

Relationship with the merchant shipping (work in fishing convention) regulations 2018 (“the 2018 regulations”)

- The 2018 regulations need to be read together with this merchant shipping notice. This notice contains details of the exceptions which apply to the night work prohibition under those regulations. Failure to comply with those obligations may be a criminal offence under the regulations.
- In order to assist with this, paragraph 11 identifies the provisions of this notice which relate to the relevant provisions in the regulations.

The merchant shipping and fishing vessel (health and safety at work) (employment of young persons) regulations 1998 (SI 1998/2411) (“the young persons regulations”) implemented for the maritime sector EC Directive 94/33/EC on the protection of young people at work and form part of UK retained law. All the obligations in the EU legislation mentioned in the young persons regulations, which had effect in the UK prior to the 1st January 2021, are retained in UK law, with any necessary modifications, after the end of the EU Exit implementation period.

Amendment 2 updates references and contact details.

1. Introduction

1.1 The merchant shipping (work in fishing convention) regulations 2018 S.I 2018/1106 (<https://www.legislation.gov.uk/search?title=&year=2018&number=1106&type=primary%2Bsecondary>) (“the 2018 regulations”) implement Article 9 of the ILO work in fishing convention, 2007 (ILO 188) which sets the minimum age for those working on fishing vessels and requires additional protection for those under the age of 18 years.

1.2 The merchant shipping and fishing vessels (health and safety at work) (employment of young persons) regulations 1998 S.I 1998/2411

<https://www.legislation.gov.uk/search?title=&year=1998&number=2411&type=primary%2Bsecondary>) (“the 1998 regulations”) require risk assessment to consider any additional risks to the health and safety of, and specify working time limits for, those under the age of 18 years.

1.3 Both sets of regulations apply to United Kingdom fishing vessels and to other fishing vessels when they are in United Kingdom waters. Copies of the regulations are available from www.legislation.gov.uk (<https://www.legislation.gov.uk/>).

1.4 For the purpose of the 2018 regulations and the young persons regulations, a young person is someone aged under 18 years of age.

1.5 Together the regulations form part of a package which implements the ILO work in fishing convention, 2007 (No. 188).

The merchant shipping (work in fishing convention) regulations 2018

2. Fisherman to be of minimum age (regulation 6(1))

2.1 The minimum age for any person working on a fishing vessel is normally 16 years of age. However, exceptions are permitted where –

2.1.1 The person is over 15 years of age; and

2.1.2 The employment or engagement is limited to light work during school holidays; and

2.1.3 The purpose of the employment or engagement is to facilitate work experience and shadowing.

2.2 Where a person over 15 years but under the age of 16 is employed or engaged onboard a fishing vessel as described in paragraphs 2.1.2 and 2.1.3 they must have completed a course in basic sea survival recognised by the MCA for use onboard fishing vessels. Details of accepted courses can be found in [MGN 411 \(https://www.gov.uk/government/publications/mgn-411-cert-req-for-crew-of-fv-their-use-to-vessels-yachts\)](https://www.gov.uk/government/publications/mgn-411-cert-req-for-crew-of-fv-their-use-to-vessels-yachts) or its subsequent replacements.

2.3 Persons of 16 years or over working onboard fishing vessels must meet the full training requirements for fishermen as set out in MGN 411 (<https://www.gov.uk/government/publications/mgn-411-cert-req-for-crew-of-fv-their-use-to-vessels-yachts>) or subsequent replacements.

2.4 In England, a young person must be in part time education or training until they are 18 (<https://www.gov.uk/know-when-you-can-leave-school>) and for more information the local education authority should be contacted.

2.5 Local authority byelaws may also regulate the work of those under school leave age (“children”). The Department for Education publishes guidance on the employment of children and on post-16 work experience which should also be consulted: child employment (<https://www.gov.uk/government/publications/guidance-on-the-employment-of-children>) and 16-19 funding study programmes (<https://www.gov.uk/guidance/16-to-19-funding-study-programmes-work-experience>)

2.6 In addition, the booklet “young people and work experience” (<https://www.hse.gov.uk/pubns/indg364.pdf>) is available to download from the HSE website.

2.7 Work activities “which are likely to jeopardise the health, safety or morals of young persons” must not be carried out by those under the age of 18. This MSN lists at paragraph 4.4 the type of activities where the nature of the activities or the circumstances in which they are carried out are likely to jeopardise a young person’s health and safety.

2.8 These activities may be undertaken by those under the age of 18 on condition that a risk assessment has shown that the risk to their health and safety has been mitigated by specific training, adequate supervision or other protective measures.

3. Young persons on night duty (regulation 7)

3.1 In addition, the 2018 regulations prohibit those under the age of 18 being employed or engaged to work at night on a fishing vessel except in the following specified circumstances:

3.1.1 When effective training of the person, in accordance with established programmes and schedules, would be impaired; or

3.1.2 The specific nature of the duty including where a fishing vessel operates solely at night, or a recognised training programme requires

fishermen to perform duties at night and the MCA determines, after consultation, that the work will not have a detrimental impact on their health or well-being.

3.2 Fishing vessel owners who have 16 to 18 year olds engaged in nightwork on their vessels should include in their risk assessment the steps they have taken to minimise the risks of nightwork and to protect the young person from the physical and mental effects of fatigue and be prepared to demonstrate this to the satisfaction of an MCA surveyor.

3.3 In these Regulations, night means a period: (a) the duration of which is not less than nine consecutive hours, and (b) which starts no later than midnight and ends no earlier than 5.a.m. (local time).

3.4 Work carried out at night as part of the following recognised training programmes and schedules of training is not considered detrimental to the health and well-being of fishermen under the age of 18 (see paragraph 3.1.2 above):

- Any training leading towards an MCA fishing certificate of competency. More information can be found on the Gov.uk website - UK CoC fishing vessel officers (<https://www.gov.uk/guidance/apply-for-a-uk-cocfishing-vessel-officers>)
- Any training leading to Seafish voluntary courses for new entrant fishermen, including;
- introduction to commercial fishing – a 3 week induction course for those wanting to begin a career in fishing
- sea fishing apprenticeship – a year long course for new entrants developed in collaboration with the Maritime Skills Alliance

Further details and up to date information please refer to Seafish safety and training (<http://www.seafish.org/training>)

3.5 This list of training programmes has been agreed following consultation with the fishing vessel owners' and fishermen' organisations concerned.

The merchant shipping and fishing vessel (health and safety at work) (employment of young persons) regulations 1998

4. Risk assessment (regulation 5)

4.1 The fishing vessel owner or employer must take particular account of the risks which might arise to young persons as a result of their inexperience, lack of awareness of risks, immaturity etc. when carrying out a risk assessment in accordance with the young persons regulations. This applies to all work activities, not only those listed in Annex A to this Notice.

4.2 The young persons regulations specify the following areas for particular attention:

- the fitting out and layout of working areas;
- the nature, degree and duration of exposure to physical, biological and chemical agents;
- the form, range and use of work equipment and the way in which it is handled;
- the organisation of processes and activities
- the extent of the health and safety training provided or to be provided to the young persons concerned and;
- risks from agents, processes and work listed in the schedule to the regulations – also listed in Annex A.

4.3 Annex A also provides advice on the risks covered by the schedule and ways of avoiding or reducing them.

4.4 Having carried out their assessment(s), employers are required to ensure that young persons are not engaged in any work:

- which is objectively beyond their physical or psychological capacity;
- involving harmful exposure to agents which are toxic, carcinogenic, cause heritable genetic damage or harm to the unborn child, or which in any other way chronically affect human health;
- involving harmful exposure to radiation;
- involving the risk of accidents which it may be assumed cannot be recognised or avoided by young workers owing to their insufficient attention to safety or lack of experience or training; or
- involving a risk to health from –
 - extreme cold or heat, or
 - noise, or

- vibration, or
- optical radiation, or
- electromagnetic fields.

4.5 Exceptions to these restrictions and prohibitions are allowed where the activity in question is –

- indispensable for vocational training; and
- is performed under the supervision of a competent person.

4.6 This means, for example, that a trainee who is following a structured training programme and is working alongside an experienced and competent person or under direct supervision, may, as a part of that training, carry out activities which fall within the criteria listed in 4.4. At all times, the fishing vessel owner or employer has a duty to ensure the health and safety of the young person at work. Appropriate controls must be in place which reduced any risk to the minimum that is reasonably practicable.

4.7 Young persons must be informed of any risks to their health and safety identified in these areas. This is in addition to any information supplied under the general duties regulations with regard to the general risk assessment for all workers.

4.8 If the fishing vessel owner or employer has brought in someone to advise on health and safety (referred to in the regulations as a competent person), they must provide them with any information relevant to that role. This should include being notified of any young persons working on the fishing vessel and of any risks identified specifically in relation to them.

5. Rest period for young persons (regulation 6)

5.1 Young persons should be provided with a minimum of 12 consecutive hours rest in every 24-hour period; and a rest period of at least 2 days in every week. Where a young person's daily working time is more than four and a half hours, they should be provided with a rest break of at least 30 minutes which should be consecutive if possible.

5.2 It is recognised that if applied rigidly, the minimum rest requirements could restrict the employment of young persons on board fishing vessels. There is therefore provision for the daily and weekly rest periods to be interrupted where periods of work are split up over the day or of short duration; and for the 2-day weekly rest period to be reduced to no less

than 36 hours where this is justified by technical or organisational reasons.

5.3 In addition, derogations are built into the regulations where the young person concerned is working to a properly agreed written schedule of duties, where specified in their fisherman's work agreement ("a relevant agreement"). This may either be a written schedule as referred to in MSN 1884(F) (<https://www.gov.uk/government/publications/msn-1884-ilo-work-in-fishing-convention-working-time>) paragraph 3.3.3.3 or in a safe manning document. Where such a schedule is in place, the rest periods above do not apply, provided that schedule provides for adequate compensatory rest time and that the fishing vessel owner or employer ensures that the hours worked do not put at risk the health and safety of the young person.

5.4 Time spent training constitutes working time. This includes time spent undergoing formal instruction at college or on training courses away from the fishing vessel, as well as training received on board. It does not include private study time either on board or ashore.

The merchant shipping and fishing vessels (health and safety at work) regulations 1997 ("the General Duties" Regulations)

6. Health surveillance

6.1 Under the general duties regulations, the employer is required to provide for health surveillance of workers where appropriate.

6.2 Where the risk assessment identifies a risk to the health and safety of young persons, or where any young person is required to work at night (other than in exceptional circumstances), the young persons concerned are entitled to free assessment of their health and capacities before starting work and regular monitoring thereafter. This monitoring is required only so long as night work continues, unless there are other factors arising from the work which may have long term consequences to health.

7. Further guidance on Health and Safety of Young Persons

7.1 When considering young persons working on board, fishing vessel owners and employers should have regard to all current health and safety regulations produced by the Maritime and coastguard Agency in addition to the related merchant shipping notices and marine guidance notes.

7.2 The fishing vessel owner and the employer should bring to the attention of young persons information concerning the prevention of accidents and the protection of their health on board fishing vessels. Such measures could include adequate instruction, training, official accident prevention publicity intended for young persons and professional instruction and supervision.

7.3 On board training/familiarisation of young persons should include guidance on the increased risk to their safety and the detrimental effects on their health and well-being of the abuse of alcohol and drugs and other potentially harmful substances, and the risk and concerns relating to HIV/AIDS and of other health risk related activities.

Other requirements applying to young persons

8. Young persons' Medical certificates

8.1 Any young person working on a UK fishing vessel must be in possession of a current medical fitness certificate. This means a fitness certificate which complies with the requirements of the Merchant Shipping (Work in Fishing Convention) (Medical Certification) Regulations 2018. Such certificates are valid for 1 year. Further information is contained in Merchant Shipping Notices MSN 1883 (F)

(<https://www.gov.uk/government/publications/msn-1883-ilo-work-in-fishing-convention-medical-examination-and-certification>) and MSN 1886 (M+F)

(<https://www.gov.uk/government/publications/msn-1886-amendment-1-mlc-and-ilo-188-medical-standards>).

9. Record of young persons

9.1 The skipper is required to hold a record, alongside the copy of the List of Crew on board the vessel, of any young persons working on the fishing vessel together with their dates of birth and date of engagement on the fishing vessel. A summary of the provisions of the Merchant Shipping and Fishing Vessels (Health and Safety at Work) (Employment of Young Persons) Regulations 1998 must be available with the List of Crew. See MSN 1891 (F) (<https://www.gov.uk/government/publications/msn-1891-amendment-1-ilo-work-in-fishing-convention-list-of-crew>).

10. References to this Notice in the Merchant Shipping (Work in Fishing Convention) Regulations 2018

10.1 Regulation 6(3) requires that any person under the age of 16 years undertaking work experience during school holidays on a fishing vessel must have completed a basic sea survival course meeting the specifications of this Notice in paragraph 2.2.

10.2 Regulation 6(4) restricts certain activities which are in themselves or because of the circumstances in which they are carried out, likely to jeopardise the health, safety or morals of a person under 18 years of age. The activities considered by the MCA, having consulted the Fishing Federations, the unions and the Fishermen's Mission to fall into this category are listed in paragraph 4.4 of this Notice and at Annex A with the protective measures to minimise these risks.

10.3 Regulation 7(2)(b)(young persons on night duty): Paragraph 3.4 of this Notice specifies work at night which is not detrimental to the health and well-being of fishermen under the age of 18.

More information

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Please note that all addresses and telephone numbers are correct at time of publishing.

Published: January 2022

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